

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUP066642: IN THE MATTER OF: TRADITIONS AT MOUNTAIN MEADOWS
HOMEOWNERS ASSOCIATION
09/15/2026 in Department 20
Petition**

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. **If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.**

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Petition: Petition for Court Order Reducing the Percentage of Votes Necessary to Amend the Declaration of Covenants, Conditions and Restrictions and Petition for Court Order to Reduce Required Voting Percentage Necessary to Amend Bylaws

Tentative:

Judicial Notice: In its notice of non-opposition, Petitioner requests that the Court take judicial notice that any late opposition that may be filed and any opposing arguments that may be presented at the hearing, would prejudice Petitioner. Petitioner's request pertains to matters not subject to judicial notice and does not comply with California Rules of Court, rules 3.1113 subdivision (l) and 3.1306 subdivision (c). Therefore, the request for judicial notice is DENIED.

Petition: Following review of the Petition and all documents and declarations filed in support of the Petition, the Court makes the following findings in accordance with Civil Code section 4275, subdivision (c):

1. The Petitioner has given not less than 15 days written notice of this hearing to all members of the association and to the City of Moorpark from whom it has obtained

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written approval. (Oseguera Decl., ¶ 2 & Ex. A; Salazar Decl., ¶ 2; Abdulla Decl., ¶¶ 2–3; Ex. B; Petition, p. 14 & Ex. K.) (Civ. Code, § 4275, subd. (c)(1).)

2. Balloting on the Amended and Restated Declaration of Covenants, Conditions and Restrictions (“Proposed CC&Rs”) was conducted in accordance with the governing documents and the law. Specifically, the Petition and the attached exhibits and declarations submitted in support thereof demonstrate that Petitioner conducted the balloting of the Proposed Amended CC&Rs in accordance with the association’s governing documents. (Perederij decl., ¶¶ 5, 12-14; Petition, Ex. G.) (Civ. Code, § 4275, subd. (c)(2).)
3. A reasonably diligent effort was made to permit all members of the association to vote. (Perederij decl., ¶¶ 5-12; Petition, Ex. G through J.) (Civ. Code, § 4275, subd. (c)(3).)
4. The current CC&Rs reflect that with the developer’s Class B voting rights having ended, and there is now a single class voting structure. Sixty-six percent of all members of the association voted on the Proposed CC&Rs, and of the members who voted, eighty-four percent voted in favor of the Proposed CC&Rs. (Perederij decl., ¶¶ 12-14) (Civ. Code,

At the hearing, Petitioner should be prepared to address the following:

1. **Voting and discipline provisions.** Explain how the proposed voting-suspension provisions in sections 5.3, 7.7, 10.1(B), and 15.6(A) comply with Civil Code section 5105, subdivision (h)(1), and how the immediate-discipline provision in section 15.6(C) complies with Civil Code section 5855.
2. **Lender approval.** Under Article XXI, section 7(d), a lender may be treated as approving an amendment if it does not respond within 30 days after receiving the required amendment notice by certified or registered mail, return receipt requested. This is what “deemed consent” means. In *Fourth La Costa Condominium Owners Ass’n. v. Seith* (2008) 159 Cal.App.4th 563, 573-574, the court approved a procedure supported by proof that lenders received notice expressly explaining the consequences of failing to respond. Here, the August letters tell lenders about the hearing and how to obtain the Petition. The declarations do not establish receipt of a request for amendment approval, a warning that silence would count as approval, or a tally showing enough lender approvals. (Salazar Decl., ¶ 2 & Ex. A; Abdulla Decl., ¶ 2 & Ex. A.) Additionally, fewer than 30 days separate the August 14 and 21 mailings from the September 15 hearing. The current Declaration measures the response period from receipt. (Petition, Ex. A, art. XXI, § 7(d); Salazar Decl., ¶ 2; Abdulla Decl., ¶ 2.)
3. **Clarifications.** Address the three-ballot difference between the 153 returned ballots and the 150 reported votes for or against the proposal, and explain what bylaw relief remains necessary when 129 votes exceed the existing 100-vote requirement. The bylaw explanation should address whether adoption of the two documents was intended to be conditional on approval of both and whether another approval remains outstanding. (Perederij Decl., ¶¶ 12–14; Petition, ¶ 10 & Exs. C, G.)

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